

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chelsea Yogerst	Team: Squad #11	CCRB Case #: 201506572	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 08/06/2015 11:35 PM	Location of Incident: 48th Street at the corner of Roosevelt Avenue and Queens Boulevard	18 Mo. SOL 2/6/2017	Precinct: 108
Date/Time CV Reported Fri, 08/07/2015 1:40 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 08/07/2015 1:41 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Dominic Ruggiero	20894	952194	108 PCT
2. POM James Campbell	23353	945547	108 PCT
3. SGT Daniel Marussich	4599	938954	108 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Daniel Marussich	Force: Sgt. Daniel Marussich used physical force against § 87(2)(b)	A . Unsubstantiated
B . SGT Daniel Marussich	Abuse: Sgt. Daniel Marussich frisked § 87(2)(b)	B . Substantiated
C . POM Dominic Ruggiero	Abuse: PO Dominic Ruggiero refused to provide his shield number to § 87(2)(b)	C . Unfounded
D . SGT Daniel Marussich	Abuse: Sgt. Daniel Marussich refused to provide his shield number to § 87(2)(b)	D . Substantiated
E . POM James Campbell	Abuse: PO James Campbell refused to provide his shield number to § 87(2)(b)	E . Substantiated
F . POM Dominic Ruggiero	Abuse: PO Dominic Ruggiero searched the car in which § 87(2)(b) was an occupant.	F . Substantiated
G . POM James Campbell	Abuse: PO James Campbell searched the car in which § 87(2)(b) was an occupant.	G . Unsubstantiated

Case Summary

On August 6, 2015, at approximately 11:35 p.m., § 87(2)(b)'s vehicle was pulled over by an unmarked vehicle on the corner of Roosevelt Avenue, Queens Boulevard and 48th Street. PO Dominic Ruggiero, PO James Campbell and Sgt. Daniel Marussich, all of the 108th Precinct, approached § 87(2)(b)'s vehicle. Sgt. Marussich allegedly reached his hand through the driver's side open window, opened the door, grabbed § 87(2)(b) by the arm, and pulled him from the vehicle (**Allegation A**). Once § 87(2)(b) exited his vehicle, Sgt. Marussich escorted him to the back of his vehicle and allegedly slammed his right hand on the trunk (**Allegation A continued**). Sgt. Marussich frisked § 87(2)(b)'s sweatpants (**Allegation B**). When § 87(2)(b) requested the badge numbers of all three officers, none of them provided this information (**Allegations C, D, and E**). While § 87(2)(b) remained near the trunk of his vehicle, PO Ruggiero allegedly entered the driver's seat of his vehicle, while PO Campbell allegedly entered the passenger side. The officers allegedly searched underneath the seats, in the glove box and behind the radio (**Allegations F and G**). § 87(2)(b) observed PO Ruggiero write him two summonses; one for a defective break light and one for a display of blue colored lights in the front of his vehicle. When PO Ruggiero gave § 87(2)(b) the summonses, he reminded him that they had not provided him with their badge numbers. In response, PO Ruggiero told him to take the two tickets to court (**Allegation C continued**).

There is no video evidence for this case.

Civil and Criminal Histories

- The case was sent to and then returned from the Mediation Unit because § 87(2)(b) decided he no longer wanted to mediate his complaint.
- § 87(2)(b) did not file a Notice of Claim (**see 07 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officers CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (**see 06 Board Review**)
- Sgt. Marussich was been a member of the service for 10 years and has four prior CCRB complaints, one of which is open; he has no substantiated allegations.
- PO Campbell has been a member of the service for 7 years and has two prior CCRB complaints; he has no substantiated allegations.
- PO Ruggiero has been a member of the service for three years and has three prior CCRB complaints. In case #201411610, vehicle stop and vehicle search allegations were substantiated and the Board recommended a Command Discipline A.

Findings and Recommendations

Allegations not Pleaded

- § 87(2)(g)
- § 87(2)(g)

§ 87(2)(g)

- § 87(2)(g)

Recommendations

Allegation A- Force: Sgt. Daniel Marussich used physical force against § 87(2)(b)

§ 87(2)(b) stated that when he was told his windows were tinted, he reached farther into his vehicle to pull out a piece of paper that states that it is legal in New York to have tinted rear windows. PO Ruggiero told § 87(2)(b) that § 87(2)(b) needed to exit the vehicle. § 87(2)(b) did not exit and instead stated that he did not consent to any searches of his vehicle. PO Ruggiero then told Sgt. Marussich to “yank” § 87(2)(b) out of the vehicle. Sgt. Marussich came over to the driver’s door, reached through the open window, opened up the door from inside and then used his hand to grab the upper part of his left arm near his shoulder to pull § 87(2)(b) out of the vehicle. Once § 87(2)(b) was escorted to the back of the vehicle, Sgt. Marussich told § 87(2)(b) to put both of his hands on top of the trunk. § 87(2)(b) did not put his hands on the trunk and again stated that he did not consent to any searches, and that they were not supposed to search his vehicle. Sgt. Marussich then lifted up § 87(2)(b)’s right hand and slammed it on the trunk.

Sgt. Marussich stated that when PO Ruggiero talked to § 87(2)(b) at the driver’s side that § 87(2)(b) was uncooperative and would not provide his license and registration and argued about the reason for the stop for about 45 seconds. PO Ruggiero then asked § 87(2)(b) to exit the vehicle. § 87(2)(b) complied, and PO Ruggiero had § 87(2)(b) walk to the back of the vehicle where Sgt. Marussich was standing. Sgt. Marussich could not recall if § 87(2)(b) opened the door on his own, or whether he or his partners had to reach into the vehicle to open up the door. Sgt. Marussich denied that he or his partners reached into the vehicle and pulled § 87(2)(b)’s arm to get him to exit or made any other form of physical contact with § 87(2)(b). When § 87(2)(b) got to the rear of the vehicle, he continued to argue about the stop. Sgt. Marussich did not recall if § 87(2)(b)’s hands were ever on the trunk and denied slamming his hands onto the trunk or making physical contact with § 87(2)(b).

PO Ruggiero also stated that § 87(2)(b) argued and would not provide his information and eventually PO Ruggiero had to ask him three times to exit the vehicle. Although he refused multiple times, § 87(2)(b) eventually exited the vehicle. PO Ruggiero could not recall if § 87(2)(b) opened the vehicle door on his own or if he and his partners had to. PO Ruggiero denied that any of the officers had to pull § 87(2)(b)’s arm or any other body part of his body to get him out of the vehicle. He denied that any force was needed to get § 87(2)(b) out of the vehicle. He also denied that any officers slammed § 87(2)(b)’s hands onto the vehicle.

PO Campbell could not hear the entire conversation on the other side of the vehicle, but he did hear that some of it involved § 87(2)(b) refusing to provide his information and that PO Ruggiero asked § 87(2)(b) to exit the vehicle. PO Campbell could not see § 87(2)(b) get out of the vehicle and did not know if officers had to grab him to get him out, but he did see § 87(2)(b) once he was outside of the vehicle. He also denied that any officers slammed § 87(2)(b)’s hands onto the vehicle.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B: Abuse of Authority: Sgt. Daniel Marussich frisked § 87(2)(b)

§ 87(2)(b) stated that when he was at the trunk of his vehicle, Sgt. Marussich patted down his black sweatpants from top to bottom which contained his car keys in his left pants pocket and a silver chain that was not connected to anything inside the right pants pocket. Sgt. Marussich did not frisk any other part of § 87(2)(b)'s body, did not reach into § 87(2)(b)'s pockets and did not say anything or mention what he was looking for.

Sgt. Marussich testified that as § 87(2)(b) was being escorted to the rear of the vehicle, he noticed that he had a bulge on his front pants pocket. He could not recall the shape of the bulge or what pocket the bulge was in but stated that it was approximately three inches wide and caused § 87(2)(b)'s pants to stick significantly further on one side than the other side. Sgt. Marussich thought that the bulge could be a weapon because it was sticking out from the general form of his body and because § 87(2)(b) had an aggressive and uncooperative demeanor and did not willingly providing his license and registration. Sgt. Marussich patted the bulge to make sure that it was not a weapon and once he realized the bulge was soft and a wallet, he no longer believed that it was a weapon. Sgt. Marussich denied that he frisked any other part of § 87(2)(b)'s body, denied that he ever reached into any pockets.

PO Ruggiero stated that when § 87(2)(b) was brought to the trunk that he alone frisked § 87(2)(b) when he patted his waistband, and denied that Sgt. Marussich frisked him. Because § 87(2)(b) was being non-complaint and wearing baggy clothes that were non-form fitting, PO Ruggiero believed he could have had a weapon. PO Ruggiero did not have any other reasons to suspect § 87(2)(b) of having weapons and did not suspect § 87(2)(b) of having any particular type of weapon.

PO Campbell denied frisking or seeing Sgt. Marrusich or PO Ruggiero frisk § 87(2)(b). Further, he stated that he did not suspect § 87(2)(b) of having a weapon.

In People v. Driscoll, 2012 Slip Op 9097 (Third Department, 2012) the court determined that someone who refused to exit his vehicle after being stopped for playing music too loudly and then mentioned that he was on parole was not sufficient grounds to provide reasonable suspicion for a frisk (09 Board Review). An officer must have reasonable suspicion that a suspect is armed to conduct a frisk People v. Debour, 40 N.Y.2d 210 (1976) (03 Board Review).

§ 87(2)(g)

Therefore it is recommended that **Allegations B** be closed as **substantiated**.

§ 87(2)(g)

According to Patrol Guide Procedure 203-09, members of service are required to courteously and clearly state their shield numbers, or otherwise provide them, to anyone who requests them to do so (see 10 Board Review).

§ 87(2)(g)

As a result, it is recommended that **Allegation C** be closed as **Unfounded**.

§ 87(2)(g)

Therefore, it is recommended that **Allegations D** and **E** be closed as **substantiated**.

Allegation F:-Abuse of Authority: PO Dominic Ruggiero searched the car in which § 87(2)(b) was an occupant.

Allegation G-Abuse of Authority: PO James Campbell searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that PO Ruggiero entered the driver's side of his vehicle and PO Campbell entered the passenger side. While § 87(2)(b) was looking through the tinted rear window, he could not see what happened inside, but could hear the click of the glove box being opened and seats being moved. When § 87(2)(b) was able to move to the side of the trunk and turn around, he was able to watch the officers while they were in his vehicle. § 87(2)(b) observed PO Ruggiero look under the seat of the driver's side and enter the back seat of the vehicle. He also observed PO Campbell remove his car radio. § 87(2)(b) did not have the ability to see the entirety of the search because there were times when Sgt. Marrusich instructed him to turn back around. § 87(2)(b) did not see the officers remove anything from the vehicle and did not hear the officers mention what they were looking for. When he returned to his vehicle, he observed that his car radio had been removed and the glove compartment, which had originally been closed, was open. Additionally, papers, empty envelopes, and stamps, which had been in the glove compartment had been taken out and were on the floor of the passenger seat side.

PO Ruggiero stated that after § 87(2)(b) exited the vehicle, he approached the driver's side of § 87(2)(b)'s vehicle and at the time, the driver's side door was open. He looked inside of the vehicle at the lungeable, grabbable areas which included the floor area, edges of the seat and under the driver's seat with a flashlight to ensure that there were no weapons. PO Ruggiero admitted that he stuck his head into the vehicle while he was looking underneath the driver's seat but only looked with his eyes and never reached inside. PO Ruggiero believed that there may have been weapons because § 87(2)(b) did not want to initially want to exit his vehicle or provide him with any information. He had no additional reasons as to why he wanted to look in the vehicle. PO Ruggiero stated he was the only officer that looked into the vehicle at this time and he did not know if his partners looked into the car at any other point during the incident. PO

Ruggiero denied that he got into the vehicle, sat in the vehicle or reached into the vehicle and denied that he or his partners ever entered the backseat area of the vehicle.

Sgt. Marussich stated he was sure that PO Ruggiero peered into the vehicle from the outside of the vehicle through the windows to check for grab-able areas but did not believe that he entered the vehicle and did not see his head or arm cross the threshold of the vehicle window.

PO Campbell and Sgt. Marussich denied that they or their partners ever entered into or searched § 87(2)(b)'s vehicle. PO Campbell denied that he crossed the plane of § 87(2)(b)'s vehicle with his head or arms and denied that he or his partners ever reached into the vehicle. PO Campbell admitted to looking at the back seat area of § 87(2)(b)'s vehicle from the outside and believed that PO Ruggiero and Sgt. Marussich also looked into the vehicle from the outside but did not know where or when they looked specifically.

A vehicle search has taken place when an officer breaches the plane of a car doorway to conduct a visual inspection. People v. Hernandez, 238 A.D.2d 131 (App. Div. 1st Department, 1997) (see 04 Board Review). An officer may conduct a limited search of a vehicle if there is a substantial likelihood that a weapon is located within the vehicle which presents an actual and specific danger to the officers' safety. People v. Baksh, 2014 NY Slip Op 112 (see 05 Board Review).

§ 87(2)(g)

Therefore it is recommended that **Allegation F** be **substantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **unsubstantiated**.

Pod:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date